

LIQUID INTELLIGENT TECHNOLOGIES CUSTOMER ORDER FORM

Liquid Telecommunications South Africa(Pty)Ltd
(Trading as Liquid Intelligent Technologies)
<https://za.liquid.tech>
Reg No. 2004/004619/07
VAT Number: 4800224455
Innovate Office Park
401 Old Pretoria Main Road Halfway House,
Midrand, 1685, South Africa
Telephone number +27 (0)11 585 0000

Order Details

Order Type:	Technical/Commercial Change	Contract	Refer Product description below for contract term
Service ID:	027ROOD1252010772623	Differential MRC:	ZAR -700

Contact Information

Account Name:	Sautech (Pty) Limited	Tax Number:	4240211963
HQ Address:	34 Stokroos Avenue Breaunanda Krugersdorp Gauteng South Africa 1739	Company Reg No:	2003/006841/07
Billing Address:	28 Fricker Road, 2nd Floor, Illovo Illovo Gauteng South Africa 1739		

Customer Contacts

Contact Type:	HQ Contact	Contact Type:	Bill to Contact
Name:	Lindie Taljaard	Name:	Lindie Taljaard
Phone:	0117681790	Phone:	0117681790
Email:	accounts@sautech.net	Email:	accounts@sautech.net

Customer Service Contacts

Contact Type:	Service Assurance Contact	Contact Type:	Implementation Contact
Name:	Mike Midzi	Name:	Mike Midzi
Phone:	011 799 7720	Phone:	011 799 7720
Email:	operations@samsungnetworking.co.za	Email:	operations@samsungnetworking.co.za

Quote Line Items

Product Description	Comments	Address Details	MRC	NRC
Product: Broadband Service Id : 027ROOD1252010772623		A End Site Address: Sautech_Cascade House 1st Floor, Cascade House, Constantia Office Park Cnr 14th Road and		

Contract Term: 12	upgrade to 30Mbps	Hendrik Potgieter Road	ZAR 2,350	ZAR 0
Billing Account: E000065026		Roodepoort		
Bandwidth Circuit Speed: 30 Mbps		Roodepoort		
BundleType: None		Gauteng		
NattingRequired: No		South Africa		
VoiceChannelsRequired: No		Longitude: -26.151364		
		Latitude: 27.925633		

Totals

Subtotal MRC	ZAR 2,350	Subtotal NRC	ZAR 0
VAT MRC	ZAR 352.5	VAT NRC	ZAR 0
Grand Total MRC	ZAR 2,702.5	Grand Total NRC	ZAR 0

Terms and Conditions

1. This Customer Order Form ("COF") constitutes a binding agreement between Liquid Intelligent Technologies and the Customer (hereinafter referred to as the "Parties") and is subject to the terms and conditions of the master services agreement ("MSA") entered into between the Parties and the Service Schedule relevant to the Service being ordered.

2. The Parties hereby incorporate by reference, and agreed to be bound by, the terms of the MSA and the Service Schedule/s, irrespective of whether the Parties have signed the MSA. The Parties agree that the COF shall be subject to the terms of the MSA and the Service Schedule relevant to the Service being ordered, as may be amended by Liquid Intelligent Technologies from time to time, copies of which are available upon request and can be viewed at <https://za.liquid.tech>. In particular, by signature of this COF, the Customer consents to the processing of his/her/its personal information in accordance with Protection of Personal Information Act and as outlined in the MSA.

3. Upon signature of this COF, the Customer agrees that the terms and conditions of the MSA and the Service Schedule relevant to the Services will supersede and take precedence over any other verbal/written agreement between the Parties regarding the provision of the Service being ordered..

4. Either Party shall be entitled to terminate the Services in terms of this COF for convenience by providing the other Party with sixty (60) calendar days' prior written notice to that effect.

5. Any termination of Services by the Customer must be in writing and sent to za.terminationdesk@liquid.tech and shall be subject to the provisions of the MSA. In the event of termination of the Services by the Customer for convenience, the Early Termination Costs will apply. The Early Termination Costs shall be calculated as follows:

5.1. in the event that the Terminating Services are terminated prior to the Service Commencement Date thereof, the Customer shall be liable for an amount equal to the NRC plus three (3) months of the MRC;

5.2. in the event that the Contract Term for the Terminating Service is twelve (12) months or less, the Customer shall be liable for 100% of the MRC for the remainder of the Contract Term of the Terminating Service;

5.3. in the event that the Contract Term for the Terminating Service is greater than twelve (12) months, the Customer shall be liable for 100% of the MRC for the Terminating Service for the remainder of the first twelve (12) months (if any), and 50% of the MRC for the Terminating Service for each month thereafter; and

5.4. in the event that the Terminating Service is terminated subsequent to the COF Initial Period and the Contract Term has been renewed, the Customer shall be liable for 50% of the MRC for the Terminating Service for each month thereafter.

6. In the event that the Early Termination Costs referred to in clause 5 above are in conflict with and/or inconsistent with the Early Termination Costs as stated in the MSA, then the Early Termination Costs in the MSA shall prevail..

7. The Early Termination Costs, as referred to in clauses 5 and 6 (above), shall not apply to Customer Specific Services, for which the Early Termination Costs for the Terminating Services shall be equal to 100% of the MRC, and any outstanding NRC, for the remainder of the Contract Term thereof.

8. In the event that any invoice issued under this COF is zero-rated in accordance with section 11 of the Value-Added Tax Act 89 of 1991 ("VAT Act") and is not paid within 90 days of the date of the relevant invoice, the Customer will be liable for the VAT charge in terms of section 11(2) (l) of the VAT Act and practice note 30 as issued by the South African Revenue Services, unless a valid dispute has been lodged regarding such outstanding invoice. Accordingly, Liquid Intelligent Technologies reserves the right to cancel the zero-rated invoice/s and issue new invoice/s reflecting VAT at the standard rate.

9. Should the Customer request to relocate any Services to new location, and Liquid is unable irrespective of the reason, to accede to and deliver the Services at the requested new location, and as a result the Customer terminated or purports to terminate the Services, then the Customer shall be liable to Early Termination Costs / penalties referred to in clause 5 above in respect to the Terminating Services.

10. For Charges for any element of the Service that is based on a foreign currency, the exchange rate to be used shall be the South African Rand / United States Dollar [whichever is the applicable foreign currency] exchange rate, as set out herein, and if this COF does not stipulate the exchange rate, then the exchange rate as downloaded by Liquid Intelligent Technologies from Reuters on the morning of the date of signature by the Customer of the COF, or any variation of the COF, shall be used ("Initial Rate"). The Customer agrees to bear the risk in any variation in the exchange rate of the South African Rand against the applicable foreign currency, and Liquid Intelligent Technologies shall be entitled to adjust the Charges in question, if the variance when the Initial Rate, is compared against the exchange rate as downloaded by Liquid Intelligent Technologies from Reuters on the morning of the relevant invoice generation date is greater than 5% (five per cent).

11. The Customer shall raise any disputes relating to billing or invoicing or any credit note claims with Liquid Intelligent Technologies within 180 (one hundred and eighty) days of billing or invoicing. Should the Customer ignore, fail or elect not to raise such disputes relating to billing or invoicing or raise any credit note issues within 180 (one hundred and eighty) days of billing or invoicing, such billing or invoicing shall be deemed to be correct.

12. Following signature of this COF, Liquid Intelligent Technologies shall be entitled to conduct a commercial and technical feasibility evaluation of the specified Services. In the event that the outcome of such feasibility evaluation is that the proposed Service is considered by Liquid Intelligent Technologies not to be feasible, Liquid Intelligent Technologies shall notify the Customer and in the event that Liquid Intelligent Technologies and the Customer are unable to agree on amended specifications that will render the Service feasible, this COF shall be of no further force and effect and neither Party shall have any obligations in relation thereto.

13. Once Liquid Intelligent Technologies has completed the installation and testing of the Service or any variation to a Service, as the case may be, Liquid Intelligent Technologies will provide the Customer with a Service Handover Form ("SHF"). The Customer must within 5(Five) business days of Liquid Intelligent Technologies providing same to the Customer either advise Liquid Intelligent Technologies in writing of its rejection of the Service (and therefore the SHF) or sign the SHF in acceptance of the Service. Should the Customer not advise Liquid Intelligent Technologies of its rejection of the Service or return a signed SHF to Liquid Intelligent Technologies in acceptance of the Service within this 5(Five) business days period, the Services will be deemed to be accepted by the Customer and billing will be triggered accordingly.

14. For Service requiring the installation of any infrastructure, Liquid Intelligent Technologies will provide the Customer with a Customer Site Requirement Specification document ("CSRS") which outlines the details of the work to be conducted within the Customer Premises, to enable Liquid Intelligent Technologies to deliver the Service. In the event that the Customer is not the owner of the building/property where such infrastructure is required to be installed, it is the obligation of the Customer to obtain the written approval and signature of the owner thereof in respect of the CSRS before Liquid Intelligent Technologies is able to undertake any such activities.

15. Any electronically signed COF submitted by the Customer shall be valid and binding acceptance of the COF and such COF shall be subject to Liquid Intelligent Technologies applicable Terms and Conditions.

Liquid Intelligent Technologies Authorisation

Key Account
Manager: _____

Line Manager: _____

Signed Date: _____

Signed Date: _____

Signature: _____

Signature: _____

Customer Authorisation

1st Customer Name: Chandle 2nd Customer Name: Lukas

Signed Date: 13/10/21 Signed Date: 13/10/21

Signature: [Signature] Signature: [Signature]

*Please initial each page

For Liquid Intelligent Technologies Internal Use

Type	Technical/Commercial Change	Opportunity ID	2094629
Sub Type	Hot Upgrade	Order Originator	Direct Sales
Expected RFS Date	2021/10/24	GNP Requested	No
Effective Date of Change	2021/10/01		